

FIRST ENDORSEMENT

Chief Prosecutor, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, March 19, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-26436 against Police Officer Matthew Kelly, Tax Registry No. 960754. The case was conferenced on February 6, 2025, before Assistant Deputy Commissioner of Paul M. Gamble, Sr, who approved Department Imposed Training. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-031905
BOOK & PAGE NO. Page <u>1</u> of <u>1</u>
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, KELLY	FIRST MATTHEW	M.I.	COMMAND 044
SHIELD NO. 9342	TAX REGISTRY NO. 960754	SOCIAL SECURITY NO.	DATE APPOINTED 01/06/2016	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Matthew KELLY, on or about January 26, 2021, at approximately 0200, while assigned to 067PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority.	DISMISSED	TRAINING Respondent will comply with and complete re-training prescribed by the Department.
2. Police Officer Matthew KELLY, on or about January 26, 2021, at approximately 0200, while assigned to 067PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) without sufficient legal authority.	DISMISSED	
3. Police Officer Matthew KELLY, on or about January 26, 2021, at approximately 0200, while assigned to 067PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he made sexually suggestive remarks to § 87(2)(b) in that he stated in sum and substance I don't know you like that and Man has to be on top You put in enough work, without policenecessity.	DISMISSED	


FIRST DEPUTY COMMISSIONER04/08/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER4/15/25
DATE

THIRD ENDORSEMENT

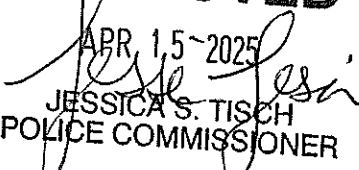
First Deputy Commissioner to Police Commissioner, April 8, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-26436 (PODS Case #C-031905; CCRB Case No. 202101162) against Police Officer Matthew Kelly, Tax No. 960754, with the recommendation that the Charges and Specifications against Police Officer Kelly be dismissed and that Police Officer Kelly receive Training. Assistant Deputy Commissioner, Trials Paul M. Gamble, Sr. reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED
APR 15 2025

JESSICA S. TISCH
POLICE COMMISSIONER